

Fatetur facinus qui fugit iudicium.

[p. 188]

Qui errat ne consentit [sic].

'No veritie, no vnity.'

But upon the whole matter, he was condemned. And the sentence of Secretary Herbert¹ [was], that the extents were void, [Healle] to be fined £2000, imprisonment, and suspended from being King's Serjeant; and Bruen to be fined £200 and imprisonment; but Kinge to be acquitted.

Justice Warberton: to fine the Sergeant £1000, and that he should have no benefit of his execution, and imprisonment; fine Bruen £100, and imprisonment; and acquit Kinge.

Baron Sauuelle: fine the Serjeant £1000, and to be free, as [there was] no execution; fine Bruen £100, and acquit Kinge.

The Lord Chief Justice: acquit Hele and Kinge of everything, and allow the usages of antedating process, for some things the law commands and others the law tolerates, and *parua mora non est mora*; and that as to this case, this Court could not give sentence: but fine Bruen £100.

Lord Burlie: fine the Serjeant £500, and revoke the extent; acquit Kinge; and fine Bruen £100.

The Bishop of London²: acquit Hele and Kinge of everything, and fine Bruen £40.

Lord Cecill, Viscount Cranbourne: fine Bruen £200; acquit Kinge; and acquit Hele of fraud, corruption and practice, but fine him for the misdemeanour £1000, 'yf th'execution be not discharged'; and he protested if he had known the offence to be of such a nature, he would never have agreed to have a public hearing.

The Earl of Northampton protested the like, and was in everything of the same opinion.

The Earl of Devon of the same opinion in everything.

The Earl of Northumberland: fine the Serjeant £1000 and remove him from his place; and acquit Kinge and Bruen.

¹ Sir John Herbert, Secretary of State. London, but at this time Archbishop of Canterbury. See list of Judges, *ante*, p. 171.

² Richard Bancroft, late Bishop of

1604
October 10,
12, 17, 19

The Earl of Nottingham, Lord Admiral: fine £2000, the extent [to be] void, fine Bruen £100, and acquit Kinge.

The Earl of Dorset, Lord Treasurer: sentence the Serjeant guilty of all, fine £1000, the extents [to be] void, suspend [him from his office]; acquit Kinge and Bruen.

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Lord Chancellor: find him guilty in all of corruption and ambition, craft and covetous practises; fine [him] £2000, and suspend [him]; [fine] Bruen £200; acquit Kinge.

But the greater number of the Judges acquitted the Serjeant of all note and blemish of infamy.¹

WRIGHT
CONSTABLE
and others

Another day in the same term; another cause between Wrighte, plaintiff, and Constable and Mathewes and others, defendants, for malicious practice in indicting Wrighte as a 'common barrettor,' for distraining his chattels to pay the entire subsidy for the whole parish, for killing his turkeys, for riotous entry, under colour of forfeiture of copyhold, to dig 'earthe, called More earthe'²; and it did not appear in all the depositions³ that the plaintiff had anything against anyone but for a 'pue' or seat in the church, and that he, on behalf of the poor men of the parish, did not agree with the rich for stinting the common.

Barrettor

A barrettor is *quasi Barre, traher*, 'that sues & stirres vp other men's suites, &, as appeares by the enditemente, must be stuffed wth many other offences.' The defendants were fined each £40, with imprisonment.

Sentence

FOURDE'S
case

Another day in the same term, Fourde was brought up *ore tenus*. He having a cause pending in the Chancery, and foreseeing that the Lord Chancellor would grant an Injunction against him, preferred a petition to the King that he would require the Lord Chancellor to stay the granting of the Injunction, for it would undo him, his wife and his children. The King sent a messenger of the Privy

¹ This is hardly borne out by the text. As to his fine, see Appendix VII.

² Halliwell gives 'Moor-stone, a kind of granite found on the moors.

³ *Liviers*.

Chamber requiring the Lord Chancellor, if it could be [consistent] with the rules of Justice and Equity, to stay the Injunction with favour to Fourde. The Chancellor, [p. 140] notwithstanding, granted the Injunction, and Fourde preferred another petition to the King informing him of this, and concluded that the question now was whether the commandment of the King or the order of the Chancellor should take effect, and such like words of injustice and shame. And so, for sowing sedition between the King and his Peers, Fourde was sentenced to have perpetual imprisonment, to lose his ears upon the pillory, having papers on his head, 'to ride wth his face to the horse taile, & to be fyned 1000^l.' He took the punishment grievously and impatiently. The Lord Chancellor left the Court, and the Lord Treasurer gave sentence. Lord Cecill¹ was of opinion that he should be ransomed, *salvo contenemento suo*. All the Court, being a great presence, condemned him bitterly, and commended the Lord Chancellor excellently, and condemned all petitions, especially where a Judge of the Court, a great man, or a magistrate is charged. 'Let all men hereby take heede how they complayne in wordes againste any magistrate, for they are gods; & he must haue verye good matter that will goe aboute to Conuynce them, for feare he ouerthrowe not himselfe.' Sentence

'The nexte Starrechamber daye there was no syttinge in Courte, for it was sayde the Lo. Chauncellor was wth the Kinge, vpon his knee, for Fourde's pardon, & had obtayned the same, w^{ch} was a verye honourable action in him, and added greatelye to his manye other honourable & worthye vertues.²

'The manner of Qu. Elizabeth's syrkenes, [p. 141] deathe and funeralls, and the proclamacion and

¹ Probably Lord Burghley, Sir Thomas Cecill.

² Docquet, dated May 22, 1605, pardon to William Foorth of fine

and corporal punishments for slanderous petitions against the Lord Chancellor. State Papers, Domestic. See also Appendix VII.

entraunce of her most lawfull successor, o^r most vertuous and trulpe relligieuse Kinge James, by god's grace of Englaunde, Fraunce & Irelande the fyrste, & of Scotlaunde the sixe and thyrtythe.¹

Queen
Elizabeth's
illness

Reports of
her death

Rejoicing of
papists and
others

Her death,
March 24,
1602

The action
of the
Council

[p. 142]

'Queene Elizabeth, after she had raigned 44 yeres & fowre monethes & 7 dayes, lingringe of a melancholye syckenes, caused as some reporte for the losse of that worthy Earle of Essex, others for the pardon obtayned for Tyrone that Irishe rebelle, others for that she sawe shee had liued longe inoughe & longed to see the ende of her dayes, for that too too [*sic*] manie abuses were Crepte in to the state, & speciallye into the gouernours of the state whoe were all so potente & rytche that lyke kinges they all ruled & raigned & no man durste speake againste what they did: it was generallie & Confydentelye reported a weeke & more before shee dyed that shee was deade, & all the better & religiouse sorte of people were muche amased & feared greatelye the dayes were now Come they wysshed neuer to liue to see; the papistes & looser kinde of people they sette there Flagges alofte & looked merrilye & feared nothings but that yt was to good to be true: but her glasse was runne, the threede of lyfe was worne, shee wente to her Forefathers in peace, lyued, reygned & dyed in peace, & bequeathed peace to her people: For vpon Wednsedaye the 28th [*sic*] of Marche, 1602,² & in the 45th yere of her Raigne, aboute twooe of the Clocke in the nighte, shee dyed at Rychemonde: ymmediatlye wherevpon the Lordes of the Counselle & others of the nobilitie poasted to london; & the nexte daye, beinge Thursedaye the Foure & twentythe daye of marche, aboute eighte of the Clocke in the morninge, the Counselle & lordes, accompanied wth dyuerse Courtyars & gentlemen, entred the Cittye of London, & caused the gates of london to be shutte presentlye vpon there entraunce; & at the Crosse in Cheapeside, the

¹ See Appendix XI.

² 1602-3. We should call it early in the morning of Thursday the 24th.